
Brundall Primary School Visit Report**Audit Date: 03/03/20****Report: Year 2 visit 2****DPE: Stuart Lee****School member: Rick Stuart-Sheppard (HT) and Kim Yates (admin)**

1. Visit details

The meeting was attended by Kim and Rick. The school continues to make good progress and embed GDPR practice in school, and appreciate it is a work in progress. Key GDPR documentation was reviewed and DPE best practice areas were discussed with the school. The school has completed additional recommended documentation, for example: Records Management Policy; ICT Classification guide and Clear Desk Policy. The school have started completing the online checklists which can continue to be used to support with future visits. The school were signposted to the bitesize training and have used the online breach log. The school does not have a governor assigned for GDPR, although GDPR forms part of the headteacher's report used at full governor meetings. The school now uses CPOMS and are moving to cloud based systems; data protection impact assessments and reviewing the work away from school documentation were discussed with the school.

Registering DPE as the named DPO email was sent to the ICO during the visit. Key action points are listed below with additional details regarding where schools should be at this stage with their GDPR project detailed in the main report:

- Privacy Notice reviewed and SL to send updated Privacy Notice for the school to adopt (attached)
- Cyber essentials documentation downloaded during the visit and the school to get their IT provider to complete;
- The school will move to Cloud solutions in the near future and were advised of the upcoming workshops that it would be beneficial for the school to attend. SL is also following up with DPE regarding involving ICT staff within the workshops. The school are also going to check what documentation the ICT provider has in managing the risks;
- School has a publication scheme and will add to the school website;
- School to review work away from school documentation with DPEs model policy;
- Record of Processing activity – school will wait until DPE advise to start to complete this.

2. Audit walk findings

The school had already made significant progress in changing practice and the culture of how data is handled and stored in school; printers have secure codes; each classroom now has lockable storage; staff are regularly reminded of best practice; lists now contain forename only and the school confirmed that it had completed the action points from the previous visit.

We discussed during the visit previous report actions and it was agreed no audit walk would be completed during the visit. Due to the difficulties identifying potential privacy issues during the day due to the school being operational, an afterschool walk was suggested. DPEs best practice guide can be used to support the process: <https://kb.dataprotection.education/best-practice-library/documents/drip-feeds/57-dpe-quick-reference-guide>

3. Compliance actions that should now be completed

Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure.

- SAR procedure
- Photo and Video consent

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data breach procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist (school to check if they can access governorhub).
- IRMS toolkit: [https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016 IRMS Toolkit for Schools v5 Master.pdf](https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf)
- DfE toolkit
[https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data Protection Toolkit for Schools OpenBeta.pdf](https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf) (Annex 5,1)

3.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

3.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

3.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

4. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template->

[guide-to-info-for-schools.pdf](#) Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

5. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

6. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

7. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>